

STATE OF NEW YORK

8685--A

IN SENATE

January 7, 2026

Introduced by Sen. FAHY -- read twice and ordered printed, and when printed to be committed to the Committee on Higher Education -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to the qualification of an applicant for the New York opportunity promise scholarship

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Paragraphs (c), (d) and (e) of subdivision 1 of section
2 6311 of the education law, as added by section 1 of part F of chapter 56
3 of the laws of 2025, are amended to read as follows:

4 (c) is matriculated at a community college of the state university of
5 New York or the city university of New York, as defined in subdivision
6 two of section sixty-three hundred one of this article or subdivision
7 four of section sixty-two hundred two of this title, respectively, in an
8 approved program directly leading to an associate's degree or certifi-
9 cate in a high-demand field; provided that for the two thousand twen-
10 ty-five -- two thousand twenty-six academic year, such fields shall
11 include but not be limited to advanced manufacturing, technology,
12 cybersecurity, engineering, artificial intelligence, nursing and allied
13 health professions, green and renewable energy, and pathways to teaching
14 in shortage areas, provided further that such fields may be updated
15 annually thereafter by the department of labor no later than one hundred
16 eighty days prior to the first start date of the fall term of such
17 community colleges, and provided further that the eligibility of such
18 approved program established in the semester for which the applicant
19 makes initial application shall continue; and

20 (d) is eligible for the payment of tuition and fees at a rate no
21 greater than that imposed for resident students in community colleges[~~+~~
22 ~~and~~

23 ~~(e) has not already obtained any postsecondary degree, provided that~~
24 ~~nothing in this paragraph shall be construed to prohibit the eligibility~~
25 ~~of a student who is already enrolled in an eligible associate degree~~
26 ~~program on the effective date of this section and who meets all the~~
27 ~~other eligibility requirements of this subdivision].~~

28 § 2. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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